

25STCV18222 25STCV18222

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Case Number: 25STCV18222 Hearing Date: August 25, 2026 Dept: 734

Plaintiff

tenant alleges that Defendant landlord failed to remediate uninhabitable conditions at the property leased by Plaintiff.

Defendant Single Room Occupancy Housing Corporation moves to strike portions of the First Amended Complaint.

TENTATIVE RULING

Defendant Single Room Occupancy Housing Corporation's motion to strike portions of the First Amended Complaint is DENIED in its entirety.

Defendant is to answer the First Amended Complaint within 10 days.

ANALYSIS

Motion To Strike

Request For Judicial Notice

1. RESTRAINING ORDER, filed by Denise Rowe against KEITH HUMDY, GRANTED on August 9, 2024, by the Hon. Judge STEVEN A. MINDEL, Pro Tem, of the Los Angeles Superior Court – Central District, in L.A.S.C. Case No. 24STRO05050, and effective from August 9, 2024, to August 9, 2025 (one-year); and

2. MINUTE ORDER, entered on August 9, 2024, granting the RESTRAINING ORDER against KEITH HUMDY, issued by the Hon. Judge STEVEN

A. MINDEL, Pro Tem, of the Los Angeles Superior Court – Central District, in L.A.S.C.
Case No. 24STRO05050.

Requests

Nos. 1 and 2 are GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The form Declaration

of Andre L. Arzoo reflects that Plaintiff's counsel did not respond to meet and confer efforts. This satisfies Civ. Proc. Code, § 435.5(a)(3)(B).

Discussion

Defendant Single Room Occupancy Housing Corporation moves
to strike portions of the First Amended Complaint.

1. ¶ 29,

11:12-22 - "As experienced owners and/or managers of residential properties, Defendants were aware that ongoing maintenance habitability violations could lead to conditions that would seriously and materially affect Plaintiff's tenancy and his right to quietly enjoy his living space. Defendants also retained manager Denise Rowe despite her long history of harassment against Plaintiff and other tenants at the Subject Property. Defendants received her write-ups and received complaints about Denise Rowe's conduct but still allowed her to engage in harassment at the Subject Property. Defendants' conduct has been oppressive, willful, malicious, negligent and was carried out with a conscious disregard for Plaintiff's legal rights and safety. Defendants acted purposefully in order to vex, injure, and annoy Plaintiff for the purpose of forcing him to abandon his legal prerogative and further to punish him for seeking redress of his concerns regarding the condition of the Subject Property."

Defendant argues that there is no allegation in the First Amended Complaint—and indeed no facts to support the claim—that SRO's officer, director or any managing agents had advance knowledge of any acts of malice, oppression, or fraud, let alone ratified them or showed a conscious disregard of them.

Punitive damages may be imposed for ratification of conduct

engaged in with malice, oppression or fraud, which may be effectuated by knowingly retaining the benefits of such conduct. Civ. Code § 3294(b); *Streetscenes v. ITC Entertainment Group, Inc.* (2002) 103 Cal.App.4th 233, 242.)

However, to withstand a motion to strike punitive damages allegations, the complaint must set forth facts supporting a claim for punitive damages:

The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. (Citation omitted.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.

Grieves v. Superior Court (Fox) (1984)
157 Cal.App.3d 159, 166 [emphasis added].)

See also Clauson v. Superior Court (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255 (“[T]o survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.”)

Regarding Rowe, the 1AC alleges as follows:

22. Harassment: Defendant refused to provide a case manager to Plaintiff even though Defendant advertised the Subject Property with a case manager for tenants. Defendant’s manager, Denise Rowe, constantly harassed and retaliated against Plaintiff. Plaintiff believes this occurred because he asserted his rights at the premises. Defendants kept Denise Rowe at the Subject Property and ratified her conduct despite Plaintiff’s complaints about her actions towards Plaintiff. Among other forms of harassment:

a. Denise Rowe entered Plaintiff’s unit without permission multiple times. Plaintiff believes that Denise Rowe tampered with his belongings in his unit at least twice, once in 2022 and once in 2024.

b. Denise Rowe threw away Plaintiff’s utensils and pans from the Subject Property’s communal kitchen without Plaintiff’s permission. Denise Rowe also once cut Plaintiff’s bike lock and then entered the building and gleefully announced she cut his lock. Plaintiff’s bike was stolen due to Denise Rowe’s targeted conduct against Plaintiff.

c. Denise Rowe was very selective about the building regulations and arbitrarily changed rules against Plaintiff. As an example, Denise Rowe changed the hours that Plaintiff was allowed to use the community kitchen, stating that Plaintiff would have to leave the kitchen at 9:45 even though he was allowed to stay until 10:00.

d. Denise Rowe once charged Plaintiff \$35 to unlock his door even though a key change is only \$15. Plaintiff believes that Denise Rowe specifically overcharged Plaintiff out of animosity towards him.

e. Denise Rowe constantly issued false write-ups against Plaintiff and write-ups over minor issues to remove Plaintiff from the Subject Property and deny him access to his Section 8 benefits. As an example, Denise Rowe wrote Plaintiff up as an associate of a person that was brining items and vandalizing the property even though Plaintiff did not know that person. Plaintiff believes this was done to remove Plaintiff from the premises.

f. Denise Rowe engaged in antagonistic conduct towards Plaintiff. Denise Rowe would bother Plaintiff after hours, including late at night around 2 or 3 in the morning. Denise Rowe had her partner deliver violations and harass Plaintiff at the Subject Property. Denise Rowe constantly threatened to issue new write-ups against Plaintiff at the Subject Property that could result in Plaintiff's removal from the premises.

(1AC, ¶ 22 [bold emphasis added].)

These allegations are sufficient to constitute malice, i.e., conduct intended to cause injury to Plaintiff (Civ. Code, § 3294(c)(1)), by Rowe, and Defendant's ratification of Rowe's conduct by failing to dismiss or discipline her:

Failure to dismiss an employee after the commission of oppressive acts is evidence of ratification if the managing agent has knowledge of, or the opportunity to learn of, the misconduct and fails to investigate. (Citation omitted.)

(Pusateri v. E. F. Hutton & Co. (1986) 180 Cal.App.3d 247, 253.)

The motion to strike punitive damage allegations at ¶ 29, 11:12-22 is DENIED.

2. ¶ 38,

13:13-17 - "Plaintiff's lease may contain an attorney fee provision that entitles Plaintiff to attorney fees should he become the prevailing party in this action. Subject to the possible attorney's fee provision in Plaintiff's lease, Plaintiff is entitled to an award of attorney's fees and costs."

Defendant argues that the 1AC claims attorney fees pursuant to Plaintiff's lease agreements yet fails to provide contractual language despite the Court's ruling on the demurrer to the Complaint.

Defendant's argument that none of SRO's leases have attorney's fees clauses relies on evidence extrinsic to the 1AC. While this may prove to be true, Plaintiff will be given an opportunity to conduct discovery to verify this. There is no harm in permitting the attorney's fees request based on a lease provision to remain in the 1AC pending discovery. If no such clause exists, then no such clause can support an eventual request for attorney's fees if Plaintiffs prevail at trial.

"[E]ven though the complaint did not allege a contract allowing recovery of attorney fees by the prevailing party, the court was not required to strike the prayer before plaintiffs had a full opportunity to determine, through discovery, whether a basis for recovery existed." (Camenisch v. Superior Court (1996)44 Cal. App. 4th 1689, 1691.)

The motion to strike the request for attorney's fees at ¶ 38, 13:13-17 is DENIED.

3. ¶ 47,

15:16-16:2 - "Defendant's conduct described above was willful, wanton, intentional, despicable, malicious, and initiated with malice and with the intent to knowingly take advantage of, oppress, and injure Plaintiff. Defendants were aware that ongoing habitability violations could lead to conditions that would seriously and materially affect Plaintiff's tenancy and his right to quietly enjoy his living space. Defendants also retained manager Denise Rowe despite her long history of harassment against Plaintiff and other tenants at the Subject Property. Defendants received her write-ups and received complaints about Denise Rowe's conduct but still allowed her to engage in harassment at the Subject Property. Defendant at all times acted with a willful and conscious disregard of the rights of safety of Plaintiff. Defendant was at all

times aware that there was a high probability that their intentional and/or negligent failure to repair and maintain the Subject Property would injure Plaintiff and cause her personal injury, emotional distress and property damage. Plaintiff is therefore entitled to an award of punitive and exemplary damages under and pursuant to Civil Code, Section 3294 and Taylor v. Superior Court (1979) 24 Cal.3d 890."

This allegation is made in connection with the cause of action for tortious breach of the implied warranty of habitability.

42. Plaintiff, other tenants, and city officials repeatedly informed Defendant and their agents about the defects outlined above. The Defendant received notification about the defects, observed the defects, and were at all times aware of the defective, illegal, non-complying, and substandard conditions plaguing the Subject Property.

43. Defendant knowingly and intentionally preyed on and took advantage of Plaintiff in failing to repair, maintain, and exterminate the Subject Property. Defendant was at all times aware that the failure to provide Plaintiff with a habitable apartment constitutes an illegal reduction in services under applicable law. Defendant was and is aware that Plaintiff is a low-income and unsophisticated tenant who has little or no knowledge of the law, little or no access to legal aid, and little or no ability to protect himself from the unscrupulous conduct of abusive landlords. Defendant was at all times aware of the shortage of low-income housing in the geographic area where the Subject Property is located and took advantage of this fact.

44. Notwithstanding Defendant's express and constructive knowledge of the illegal conditions impacting the Subject Property and Plaintiff, Defendant repeatedly failed or delayed making repairs to the Plaintiff's unit and the Subject Property. Defendant repeatedly misrepresented to Plaintiff that they would make repairs and then failed to do so. Defendant's conduct was intentional and designed to extract rent from Plaintiff in derogation of Plaintiff's rights under applicable law, save money, increase their cash flow from the operation and management of the Subject Property.

45. At no time has Defendant offered to reduce or compromise Plaintiff's obligation to pay rent in light of the defects described herein. Defendant knew that the Subject Property was not fit for human occupation, but made the conscious decision to subject Plaintiff to the illegal and unacceptable living conditions present in the Subject Property solely for monetary gain and without regard to Plaintiff's rights and status as a lawful occupant of the Subject Property.

46. As the direct and proximate result of the foregoing, Plaintiff has suffered bodily injury, property damage, emotional distress, and other damages in an amount in excess of the jurisdiction of this Court. In addition, the rental value of the Plaintiff's unit has been substantially diminished such that Defendant has been unjustly enriched by their own bad faith and intentional misconduct.

The alleged uninhabitable conditions are pled at ¶¶ 15–21 of the 1AC as to unmaintained wiring, water leaks, missing cover plates; constant internal water leaks, weather intrusion, water damage, and mold growth; lack of proper heating and ventilation; permitting accumulations of trash and debris to occur in the Subject Property's common areas, filthy water to leak through pipes, and unsanitary conditions to remain unabated at the premises; cracks, holes, defective mechanical equipment, and other forms of physical damage. Plaintiff alleges that Defendants knew of these conditions, but did nothing to legitimately repair or abate, instead motivated to save money and increase their cash flow and net income from the operation and management of the Subject Property. (Id.)

These allegations are sufficient at the pleading stage to allege that Defendant acted with malice or oppression[1] in knowingly failing to remediate uninhabitable conditions in order to maximize profits. Defendant may conduct discovery to ascertain the details of these instances where Defendant was notified of and failed to repair such conditions.

The motion to strike the punitive damage allegations at ¶ 47, 15:16-16:2 is DENIED.

4. ¶ 48, 16:3-7 - "Plaintiff's lease may contain an attorney fee provision that entitles Plaintiff to attorney fees should he become the prevailing party in this action. Defendant's tortious conduct also violated statutory codes such as L.A.M.C. § 45.33, which contains a provision for attorney fees. Subject to the terms of Plaintiff's lease and/or applicable law, Plaintiff is entitled to an award of attorney's fees and costs."

and

5. ¶ 64, 20:3-10 - "The Defendants' actions were willful, directed at plaintiff, would create an apprehension of harm in a reasonable person, and served no legitimate purpose. Defendant's manager, Denise Rowe, constantly harassed Plaintiff at the Subject Property

because he asserted his rights. As stated herein, Denise Rowe trespassed into Plaintiff's unit, threw away Plaintiff's belongings, selectively enforced rules and changed rules specifically to harass Plaintiff, charged Plaintiff excessive amounts for services like opening his door, and issued false write-ups against Plaintiff to remove him from the Subject property. As such, Defendants are liable for tenant harassment under L.A.M.C. § 45.33 and Los Angeles County Code 8.52.130."

Defendant argues that the Los Angeles County Code 8.52.040, entitled "General Applicability of Chapter," provides that the Los Angeles County Code Chapter 8.52 "shall be effective on April 1, 2020, and apply to all Landlords and Tenants in Dwelling Units within the unincorporated areas of the County, unless otherwise exempted by State law or the provisions of this Chapter." (Ibid, emphasis added.) Here, however, the Subject Property, located at 534 South San Julian Street, Los Angeles, California 90013, is not within an unincorporated area of Los Angeles County. Accordingly, Los Angeles County Code § 8.52.170 does not apply and does not support a claim for attorney fees. Instead, Los Angeles Municipal Code applies to properties located within the City of Los Angeles, such as the Subject Property in this case. Plaintiffs' FAC alleges inspections and/or citations that occurred from May 28, 2021, through April 8, 2024. (¶ 17, 6:23-8:14.). However, the anti-tenant harassment ordinance only became effective in 2021, and was amended by Ordinance No. 188,416, with an effective date of December 29, 2024.

Defendant also argues that the former version of Municipal Code § 45.35 applies, and not the current iteration of the Municipal Code because there does not appear to be a retroactive application provision in the amended ordinance.

The above argument relies upon a request for judicial notice which Defendant did not present in proper form. Moreover, Defendant's argument goes to whether Plaintiffs plead facts sufficient to constitute a cause of action for violation of Los Angeles County Code 8.52.040 and violation of Municipal Code § 45.35, which is the function of a demurrer (or motion for judgment on the pleadings), not a motion to strike.

Preliminarily, we note a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. (Citation omitted.)

(Pierson v. Sharp Mem'l Hosp. (1989) 216 Cal.App.3d 340, 342.)

The motion to strike the requests for attorney's fees at ¶ 48, 16:3-7 and allegations of tenant harassment at ¶ 64, 20:3-10 is DENIED.

6. ¶ 65,
20:11-12 - "For the aforementioned reasons, Defendants are liable for civil penalties stemming from each incident of harassment, as will be itemized at trial."

Defendant did not offer any argument in support of the request to strike this portion.

The motion
to strike ¶ 65, 20:11-12 re: civil penalties is DENIED.

7. Page
21, line 9 - "4. For exemplary and punitive damages according to proof."

This is part of the Prayer. For the reasons discussed above, the motion to strike the prayer for punitive damages at Page 21, line 9, ¶ 4 is DENIED.

8. Page
21, line 10 - "5. For attorney's fees pursuant to Plaintiff's lease and/or L.A.M.C. § 45.33."

This is part of the Prayer. For the reasons discussed above, the motion to strike the prayer for attorney's fees at Page 21, line 10, ¶ 5 is DENIED.

Defendant is to answer the First Amended Complaint within 10 days.

[1]

(1)"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2)"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(Civ. Code

§ 3294(c)(1) & (2).)